

COMPREHENSIVE LOGISTICS AGREEMENT

This Logistics Agreement ("Agreement") is entered into on this ____ day of _____ 20____ ("Effective Date"), by and between:

1. PARTIES

Client

Company Name: _____

Registration Number: _____

Physical Address: _____

Representative: _____

Position: _____

Logistics Service Provider

Company Name: _____

Registration Number: _____

Physical Address: _____

Representative: _____

Position: _____

The above parties shall collectively be referred to as "the Parties."

2. PURPOSE OF AGREEMENT

The purpose of this Agreement is to define the terms and conditions under which the Logistics Service Provider ("Provider") will provide transportation, warehousing, delivery, freight, distribution, and related logistics services to the Client.

3. SCOPE OF SERVICES

The Provider agrees to perform the following services:

- Transportation of goods
- Freight handling

- Loading and unloading
- Warehousing and storage
- Inventory management
- Customs clearance assistance (if applicable)
- Packaging and repackaging
- Distribution and delivery services
- Route planning and shipment tracking
- Reverse logistics/returns management
- Any additional services agreed to in writing

The detailed operational requirements may be attached as **Schedule A**.

4. TERM OF AGREEMENT

This Agreement shall commence on the Effective Date and remain in force for:

☐ Fixed Term: _____ months/years

OR

☐ Ongoing until terminated in accordance with this Agreement.

5. SERVICE LEVEL REQUIREMENTS

The Provider agrees to:

1. Deliver goods within agreed timelines.
2. Maintain professional standards and industry best practices.
3. Ensure goods are handled safely and securely.
4. Provide real-time tracking where applicable.
5. Maintain delivery accuracy.
6. Minimize losses, damages, and delays.
7. Notify the Client immediately of any incidents affecting shipments.

Key Performance Indicators (KPIs)

The following KPIs may apply:

KPI	Target
On-time delivery rate	____%
Order accuracy	____%
Damage rate	____%
Response time	____ hours
Inventory accuracy	____%

Failure to meet KPIs may result in corrective action or penalties.

6. OBLIGATIONS OF THE CLIENT

The Client shall:

1. Provide accurate shipment details.
 2. Ensure goods are properly packaged unless otherwise agreed.
 3. Provide necessary documentation.
 4. Pay invoices on time.
 5. Comply with applicable laws and regulations.
 6. Notify the Provider of any special handling requirements.
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7. OBLIGATIONS OF THE PROVIDER

The Provider shall:

1. Maintain all required licenses and permits.
2. Employ trained and qualified personnel.
3. Maintain vehicles and equipment in safe working condition.
4. Comply with health, safety, and environmental regulations.
5. Maintain adequate insurance coverage.
6. Keep accurate operational records.

7. Protect Client goods from theft, loss, or damage.
8. Ensure confidentiality of Client information.

8. PRICING AND PAYMENT TERMS

Fees

The Client agrees to pay the Provider as follows:

- ☐ Fixed monthly fee of: _____
- ☐ Per shipment fee: _____
- ☐ Per kilometer/mile rate: _____
- ☐ Storage fee: _____
- ☐ Additional charges: _____

Invoicing

- Invoices shall be submitted: ☐ Weekly ☐ Monthly ☐ Per Shipment
- Payment shall be due within _____ days of invoice date.
- Late payments may attract interest at ____% per month.

Taxes

All fees are:

- ☐ Inclusive of taxes
- ☐ Exclusive of taxes

9. DELIVERY TERMS

1. Delivery schedules shall be agreed upon in writing.
 2. Proof of delivery shall be provided.
 3. Delays caused by force majeure, customs, strikes, weather, or other uncontrollable circumstances shall not constitute breach.
 4. The Provider shall notify the Client of any anticipated delays.
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10. OWNERSHIP AND RISK

1. Ownership of goods shall remain with the Client unless otherwise agreed.

2. Risk of loss or damage shall transfer:

☐ Upon collection

☐ Upon delivery

☐ According to Incoterms specified: _____

3. The Provider shall exercise reasonable care in handling goods.

11. INSURANCE

The Provider shall maintain:

- Public liability insurance
- Goods-in-transit insurance
- Vehicle insurance
- Workers' compensation insurance
- Warehouse insurance (if applicable)

Insurance coverage amounts:

The Provider shall provide proof of insurance upon request.

12. LOSS, DAMAGE, AND LIABILITY

1. The Provider shall be liable for loss or damage caused by negligence, misconduct, or failure to comply with this Agreement.

2. The Client must report damage or shortages within _____ days of delivery.

3. Liability shall be limited to:

☐ Actual value of goods

☐ Maximum amount of: _____

4. The Provider shall not be liable for:

- Improper packaging by the Client
 - Inherent defects in goods
 - Force majeure events
 - Delays beyond reasonable control
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13. INDEMNITY

Each Party agrees to indemnify and hold harmless the other Party against claims, losses, damages, liabilities, and expenses arising from:

- Breach of this Agreement
 - Negligence or misconduct
 - Violation of laws or regulations
 - Injury to persons or property caused by the indemnifying Party
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14. CONFIDENTIALITY

1. Both Parties agree to keep confidential all business, operational, pricing, and customer information.
 2. Confidential information shall not be disclosed to third parties without written consent.
 3. Confidentiality obligations survive termination of this Agreement.
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15. DATA PROTECTION

The Parties agree to comply with all applicable data protection and privacy laws, including the lawful handling of customer, employee, and shipment information.

16. COMPLIANCE WITH LAWS

The Provider shall comply with:

- Transportation regulations
- Labour laws
- Customs and import/export laws
- Health and safety laws

- Environmental laws
- Road traffic regulations

The Client shall ensure all goods are lawful and properly declared.

17. HEALTH, SAFETY, AND SECURITY

The Provider shall:

1. Maintain workplace safety standards.
 2. Ensure secure handling of cargo.
 3. Conduct background checks where appropriate.
 4. Implement theft prevention procedures.
 5. Report security incidents immediately.
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18. SUBCONTRACTING

- ☐ The Provider may subcontract services with prior written approval from the Client.
- ☐ The Provider may not subcontract services.

The Provider remains responsible for all subcontracted work.

19. FORCE MAJEURE

Neither Party shall be liable for failure or delay caused by events beyond reasonable control, including:

- Natural disasters
- War
- Civil unrest
- Government actions
- Pandemics
- Strikes
- Fire
- Floods

- Power failures

The affected Party must notify the other Party promptly.

20. TERMINATION

Termination for Convenience

Either Party may terminate this Agreement by providing _____ days written notice.

Immediate Termination

Either Party may terminate immediately if:

- The other Party commits material breach
- Insolvency or liquidation occurs
- Fraud or illegal conduct occurs
- Required licenses are revoked

Effect of Termination

Upon termination:

1. Outstanding payments become due.
2. Goods shall be returned or delivered as instructed.
3. Confidential information must be returned or destroyed.
4. Any surviving clauses remain enforceable.

21. DISPUTE RESOLUTION

In the event of a dispute:

1. The Parties shall first attempt negotiation.
2. If unresolved, mediation shall follow.
3. If mediation fails, disputes shall be resolved by:

☐ Arbitration

☐ Court litigation

Jurisdiction:

Applicable law:

22. NON-SOLICITATION

During the term of this Agreement and for _____ months thereafter, neither Party shall directly solicit or hire employees of the other Party without written consent.

23. NON-EXCLUSIVITY

This Agreement is:

☐ Exclusive

☐ Non-exclusive

Unless stated otherwise, both Parties may engage with other companies.

24. AUDIT RIGHTS

The Client may audit relevant operational records upon reasonable notice to verify compliance with this Agreement.

25. INTELLECTUAL PROPERTY

Any software, systems, trademarks, logos, documentation, or intellectual property belonging to either Party shall remain the property of that Party.

26. NOTICES

All notices under this Agreement shall be in writing and delivered by:

- Email
- Courier
- Registered mail
- Hand delivery

Client Notice Details

Email: _____

Address: _____

Provider Notice Details

Email: _____

Address: _____

27. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the Parties and supersedes all prior discussions or agreements.

28. AMENDMENTS

No amendment shall be valid unless made in writing and signed by both Parties.

29. SEVERABILITY

If any provision of this Agreement is found invalid or unenforceable, the remaining provisions shall remain in effect.

30. GOVERNING LAW

This Agreement shall be governed by the laws of:

31. SIGNATURES

CLIENT

Company Name: _____

Representative Name: _____

Signature: _____

Date: _____

LOGISTICS SERVICE PROVIDER

Company Name: _____

Representative Name: _____

Signature: _____

Date: _____

SCHEDULE A – SERVICE REQUIREMENTS

(Insert detailed operational requirements, delivery zones, vehicle specifications, timelines, product types, handling instructions, reporting requirements, warehouse details, etc.)

SCHEDULE B – PRICING STRUCTURE

(Insert detailed rates, fuel surcharges, overtime charges, storage costs, customs fees, handling fees, etc.)

SCHEDULE C – INSURANCE DETAILS

(Insert policy numbers, insurers, coverage amounts, exclusions, and expiry dates.)

IMPORTANT NOTE

This template is a general commercial logistics agreement and should be reviewed by a qualified legal professional before use to ensure compliance with local laws, industry regulations, and the specific needs of the Parties.